

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: May 22, 2026

1	Wisdom vs. California Department of Motor Vehicles 2025-01505175	Petition for Writ Petitioner Holly Lee Wisdom's Petition for Writ of Mandate is CONTINUED to December 4, 2026 at 9:30 AM. Petitioner seeks a Writ of Mandate pursuant to California Code of Civil Procedure §1094.5. Petitioner seeks an order directing the California Department of Motor Vehicles (DMV) to set aside the suspension of her driver's license.
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		Judicial review of a DMV license suspension "shall be on the record of the hearing and the court shall not consider other evidence." (Veh. Code, § 13559.) "In a section 1094.5 proceeding, it is the responsibility of the petitioner to produce a sufficient record of the administrative proceedings; 'otherwise the presumption of regularity will prevail, since the burden falls on the petitioner attacking the administrative decision to demonstrate to the trial court where the administrative proceedings were unfair, were in excess of jurisdiction, or showed "prejudicial abuse of discretion.'" (Elizabeth D. v. Zolin (1993) 21 Cal.App.4th 347, 354.) Moreover, a memorandum of points and authorities is required for a noticed motion, including for mandamus. (See CCP § 1094; CRC Rule 3.1113(a) and (b).) The absence of a memorandum is an admission that the motion is not meritorious and may be denied. (CRC Rule 3.1113(a).) "The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (CRC, Rule 3.1113(b).) Here, Petitioner did not serve or file the administrative record on a timely basis, nor did she submit a memorandum of points and authorities that cites to an administrative record to support her Petition. Accordingly, the hearing on the motion is continued to allow Petitioner to file an opening brief with a memorandum of points and authorities. Petitioner must file her opening brief no later than October 9, 2026. Any Opposition to be filed by October 23, 2026. Any Reply brief due November 6, 2026. Petitioner shall give notice.
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